

Nikhil vs State on 23 April, 2010

Author: Anant S. Dave

Bench: Anant S. Dave

Gujarat High Court Case Information System

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CR.MA/11051/2009

2/ 2 ORDER

IN
THE HIGH COURT OF GUJARAT AT AHMEDABAD

CRIMINAL
MISC.APPLICATION No. 11051 of 2009

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NIKHIL
S/O KANTILAL PARMAR & 5 - Applicant(s)

Versus

STATE
OF GUJARAT & 1 - Respondent(s)

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Appearance
:
MR AY KOGJE for Applicant(s) :
1 - 5.
PUBLIC PROSECUTOR for Respondent(s) : 1,
RULE SERVED BY
DS for Respondent(s) : 2,
MR SATYEN B RAWAL for Respondent(s) :
2,
=====

CORAM

:

HONOURABLE

MR.JUSTICE ANANT S. DAVE

Date
: 23/04/2010

ORAL
ORDER

1. This application under Section 482 of the Code of Criminal Procedure, 1973 is filed with following prayer:

4(A) To quash and set aside the FIR being I.C. No.246 of 2009 at Annexure A registered with Sola Police Station for the offence punishable u/s. 498(A), 323, 294(b) and 114 of the I.P.C, 1860 under Sections 3 and 7 of the Dowry Prohibition Act, 1961 at and Yadi of the order may be sent to (1) the Chief Judicial Magistrate, Ahmedabad rural in Ahmedabad (2) Sola Police Station, Sola, Ahmedabad.

2. Initially by an order dated 14.10.2009, rule was issued by granting ad-interim relief in terms of para 4(B) of the petition on a condition that the parties will abide by consent terms. The consent terms dated 14.10.2009 signed by the parties in presence of notary and so affirmed, is produced before this Court and is also part of the record. In addition to the above, parties have also filed undertaking in furtherance of above consent terms and the said interim relief continued from time to time. Meanwhile, as per one of the conditions of the consent terms, the parties have obtained decree of divorce by mutual consent under Section 13(B) of the Hindu Marriage Act, 1955 and order is passed by learned Principal Judge, Family Court, Ahmedabad on 26th March, 2010 in Family Suit No. 1280 of 2009.

3. In view of the above backdrop, the above order dated 26th March, 2010 passed in Family Suit No.1280 of 2009 by the Family Court, Ahmedabad of a decree of divorce by mutual consent under Section 13(B) of Hindu Marriage Act, 1955, is produced on record and is ordered to be taken on record.

4. In view of the above, Mr. A.Y. Kogje, learned advocate for the applicants and Mr. Satyen Raval, learned advocate, for respondent No.2-complainant (wife), have submitted in presence of complainant and her father to quash the impugned complaint in exercise of powers under Section 482 of the Code of Criminal Produce, 1973.

5. Considering the averments made in the application, consent terms dated 14.10.2009, decree of divorce dated 26th March, 2010 passed by the Family Court, Ahmedabad and so stated by respondent No.2 who is present in the Court that, no dispute is now pending between the applicants and the complainant and that they have arrived at an amicable settlement so as to avoid future litigation and live peacefully and happy life, I deem it just and proper to exercise powers under Section 482 of the Code of Criminal Procedure, 1973, so as to secure end of justice and, therefore, prayer in terms of para 4(A) is granted by quashing and setting aside the impugned complaint.

6. This application is allowed accordingly.

7. There shall be no order as to costs.

[ANANT S. DAVE, J.] //smita//